

TENTATIVE RULING

United Security Bank
v.
Nickolas W. Jekogian III, et al.
24CV004200

Plaintiff's Motion to Compel Further Discovery Responses

Hearing Date: July 24, 2026

United Security Bank ("Plaintiff") filed a motion to compel Defendant Nickolas W. Jekogian III to further respond to Plaintiff's first set of Form Interrogatories, Special Interrogatories, Requests for Production of Documents ("RPD"), and Requests for Admissions ("RFA") (collectively, "Discovery"). As detailed below, the motion is **GRANTED IN PART and DENIED IN PART**. Also, Plaintiff's evidentiary objections are **OVERRULED**. Finally, Plaintiff's request for sanctions is **GRANTED IN PART**, and \$4,563 in monetary sanctions are awarded to Plaintiff.

Plaintiff's Evidentiary Objections.

Plaintiff's Objection Nos. 1 through 5 to Mr. Jekogian's declaration are **OVERRULED**. All the objections concern paragraphs in Mr. Jekogian's declaration that reflect his personal understanding rather than the truth of the matter asserted. The objections do not provide a basis to strike the declaration.

Interrogatories.

A. Legal Standard.

"[A]ny party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action...if the matter either is itself admissible in evidence or appears reasonably calculated to lead to discovery of admissible evidence." [Code Civ. Proc. § 2017.010.] "Discovery may relate to the claim or defense of the party seeking discovery of any other party to the action." [*Ibid.*] That discovery may be obtained "of the identity and location of persons having knowledge of any discoverable matter, as well as of the existence, description, nature, custody, condition and location of any document, electronically stored information, tangible thing, or land or other property." [*Ibid.*]

A party serving interrogatories may file a motion for an order compelling further responses if that party believes an answer is, among other things, evasive or incomplete, or an objection lacks merit or is too broad. [Code Civ. Proc. § 2030.300, subd. (a).] If a timely motion to compel is filed, the responding party has the burden to justify any objection or failure to answer the interrogatories fully. [*Coy v. Superior Court* (1962) 58 Cal.2d 210, 220-221; *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.]

In assessing the motion, a court should generally consider the following factors: (1) the relationship of the information sought to the issues framed in the pleadings; (2) the likelihood that disclosure will be of practical benefit to the party seeking discovery; and (3) the burden or expense likely to be encountered by the responding party in furnishing the information sought. [*Columbia Broadcast System, Inc. v. Superior Court* (1968) 263 Cal.App.2d 12, 19.]

B. Form Interrogatories.

Nos. 2.5 and 2.6. The motion is **GRANTED**. These interrogatories ask about Mr. Jekogian's residence and employer. The Court agrees with Plaintiff that these form interrogatories seek information relevant to Mr. Jekogian's role in and knowledge of the transactions, credibility, and availability as a witness. [*See Reply at 4:4-8.*]

No. 2.11. The motion is **GRANTED**. This interrogatory asks if Mr. Jekogian was acting as an agent or employee for any person at the time of the incident. The use of the term "incident," which the Judicial Council defined in the Form Interrogatories, is not so unclear or ambiguous that it prevents a reasonable person, including Mr. Jekogian, from giving an understandable response. Additionally, this Form Interrogatory does not request information protected by the attorney-client privilege, the work-product doctrine, or any other unspecified privilege or right to privacy.

No. 12.1. The motion is **GRANTED** because Mr. Jekogian fails to include the contact information for Heather Jekogian Discher.

No. 15.1. The motion is **GRANTED**. Mr. Jekogian's response is evasive and does not answer the question asked.

No. 17.1. The motion is **GRANTED IN PART AND DENIED IN PART**. Plaintiff propounded 70 RFAs, exceeding the 35-request limit. [Code Civ. Proc. § 2033.030.] Plaintiff did not submit the required declaration for requesting more than 35 admissions. [Code Civ. Proc. § 2033.050.] Because that declaration was not submitted, the responding party need only respond to the first 35 admission requests served that do not relate to the genuineness of the documents. [Code Civ. Proc. § 2033.030, subd. (b).] A review of the RFAs shows that only Nos. 8, 17, 24, 29, and 33 request an admission that a specific document is authentic. Therefore, as to RFAs 1-40, the motion is **GRANTED**, and, as to the remaining RFAs, the motion is **DENIED**.

No. 50.1. The motion is **GRANTED**. Mr. Jekogian's failure to specify documents and custodians is evasive.

Nos. 50.2, 50.3, and 50.5. The motion is **GRANTED** based on the grounds presented in Plaintiff's motion and the accompanying separate statement. For Nos. 50.2 and 50.3, Mr. Jekogian's responses are evasive because he limits the interrogatories to his alleged breach alone, even though the interrogatories are broader and include any alleged breach by others, such as Signature York. Regarding No. 50.5, Mr. Jekogian's objections are not justified, and he must clearly state his actual position along with all supporting facts.

C. Special Interrogatories.

Nos. 1, 3, 5-8, and 11-20. The motion is **GRANTED**. Mr. Jekogian's objections are improper, his responses are incomplete, and he provided only conclusory or categorical statements.

Nos. 9-10 and 21. The motion is **DENIED**, because those interrogatories are duplicative of either Form Interrogatory Nos. 15.1 or 17.1.

RPDs.

If a party responding to a request for production fails to permit inspection, copying, testing, or sampling as specified in that party's statement of compliance, the requesting party may file a motion for an order to enforce compliance. [Code Civ. Proc. § 2031.320, subd. (a).] A motion to compel further responses to a request for production must include specific facts demonstrating "good cause" to justify the discovery sought by the demand. [Code Civ. Proc. § 2031.310, subd. (b)(1).] If the moving party shows good cause for producing documents, the burden shifts to the objecting party to justify the objections. [*Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.] The court shall impose a monetary sanction against any party, person, or attorney who unsuccessfully files or opposes a motion to compel further responses to a demand for inspection or production of documents, or a motion to compel compliance with a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make it unjust to impose sanctions. [Code Civ. Proc. §§ 2031.310, subd. (h), and 2031.320, subd. (b).]

Nos. 1-8. The motion is **GRANTED**. Mr. Jekogian's privilege/work-product objections require a privilege log. Further, his assertions of "never had possession, custody, or control" are contradicted by supplemental responses and his role in the underlying transactions. Therefore, Mr. Jekogian must provide a further response that complies with Code of Civil Procedure section 2031.230.

RFAs.

The party receiving requests for admission must respond in writing under oath to each request individually. [Code Civ. Proc. § 2033.210, subd. (a).] A party can respond by either admitting, denying, or objecting to the request. [*Id.* at subd. (b).] If part of a request is objectionable, the responding party must answer the unaffected portion. [Code Civ. Proc. § 2033.230, subd. (a).] Any denial of all or part of a request must be clear and unequivocal. [Code Civ. Proc. § 2033.220; *American Federation of State, County & Mun. Employees v. Metropolitan Water Dist.* (2005) 126 Cal.App.4th 247, 268.]

When the propounding party believes that the responses to requests for admission are inadequate or that any objections to the requests are unjustified, that party may file a motion to compel further responses. [Code Civ. Proc. § 2033.290; *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 776.] The grounds for such a motion include that (1) the answer to a particular request for admission is evasive or incomplete, or (2) an objection to a request for admission is

without merit or too general. [Code Civ. Proc. § 2033.290, subd. (a).] The Court shall impose monetary sanctions against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further responses, unless it finds that the individual subject to the sanctions acted with substantial justification or that other circumstances make imposing sanctions unjust. [*Id.* at subd. (d).]

Nos. 41 through “69” (sic).¹ The motion is **DENIED**. Plaintiff exceeded the 35-request limit [Code Civ. Proc. § 2033.030] and did not submit the required declaration requesting more than 35 admissions [Code Civ. Proc. § 2033.050]. A review of the RFAs shows that only Nos. 8, 17, 24, 29, and 33 relate to the genuineness of a document attached as an exhibit to the operative complaint. Therefore, RFAs 41-“69” were improperly propounded.

Nos. 2, 3, 5, 18, 21-30, and 34-40. The motion is **GRANTED**. Mr. Jekogian’s boilerplate objections are improper, the denials are evasive or inconsistent with verified interrogatory responses, and further responses are warranted. [Code Civ. Proc. § 2033.290.]

Sanctions.

“[T]he court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” [Code Civ. Proc. § 2031.310, subd. (h); *see also* Code Civ. Proc. §§ 2030.300, subd. (d), and 2033.290, subd. (d).]

The Court finds Mr. Jekogian’s objections largely unmeritorious and the responses evasive, constituting misuse of the discovery process. [Code Civ. Proc. § 2023.010, subds. (e)-(f).] Plaintiff has not justified the full amount requested in the Reply, particularly the additional 2.1 hours claimed. The sanctions request is **GRANTED**, and Plaintiff is awarded \$4,563, jointly and severally against Mr. Jekogian and defense counsel. This amount reflects reasonable time for preparing the motion, reviewing the opposition, preparing the reply, attending the hearing, a modest reduction in the supervising partner’s rate, and the filing fee.

Conclusion.

As detailed above, Plaintiff’s motion is **GRANTED IN PART AND DENIED IN PART**. Within 20 days of the Notice of Entry of the signed order, Mr. Jekogian shall serve complete, verified, and objection-free responses to each of Plaintiff’s Discovery.

Plaintiff’s request for monetary sanctions is **GRANTED IN PART**. Mr. Jekogian and his counsel, jointly and severally, shall pay a total of \$4,563 in reasonable sanctions, payable to Wagner Jones Helsley PC, within 20 days of the Notice of Entry of the signed Order.

Plaintiff shall prepare the Proposed Order consistent with this Tentative Ruling.

¹ Two RFAs were labeled twice as “69.” Therefore, if they were numbered correctly, the RFAs discussed in this paragraph are Nos. 41 through 70.

NOTE RE TENTATIVE RULING

This tentative ruling becomes the court's order, and no hearing shall be held unless one of the parties contests it by following Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9. Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE HEARING VACATED.** You must notify the court by [email](#) or by calling the Calendar Department at 831-647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.